

CAN A DRUNK DRIVER BE CHARGED WITH MURDER?

Introduction



Fatal accidents involving intoxicated drivers are generally prosecuted under the **Road Transport Act 1987**. In exceptional circumstances, however, where the driver's conduct goes beyond ordinary recklessness and demonstrates knowledge that death was a probable consequence, the possibility of a murder charge under the Penal Code may arise.

The central question is whether drunk driving can legally sustain a charge of murder or whether such conduct falls short of the essential elements of the offence?

When a person drives under the influence of alcohol, he may be charge under **Section 44(1) of the Road Transport Act 1987 ("RTA 1987")**. The section provides that where a person drives while under the influence of alcohol or drugs, or exceeds the prescribed alcohol limit, and causes death. A first conviction carries imprisonment of between 10 to 15 years, a fine of RM50,000 to RM100,000. **Section 41 RTA 1987** separately covers causing death by reckless or dangerous driving.

When can drunk driving amount to Murder?

Murder is defined under **Section 300 of the Penal Code ("PC")**. **Section 300 of the PC provides that murder is when:-**

- (a) If the act of causing death is done with the intention of causing death;
- (b) If the act is done with the intention of causing such bodily injury which the offender knows would likely to cause death of the person;
- (c) If the act is done with the intention of causing bodily injury and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death; or
- (d) If the person committing the act knows that it is so imminently dangerous that it must in all probability cause death, or such bodily injury as is likely to cause death, and commits such act without any excuse for incurring the risk of causing death, or such injury as aforesaid.

In relation to driving under the influence of alcohol, it relates to **Section 300(d) of the PC** where the accused: -

- knew that the act was so imminently dangerous that it would, in all probability, cause death or a fatal injury; and
- committed the act without any justification for taking that risk.

Therefore, driving while intoxicated does not automatically amount to murder. The prosecution must prove that the driver possessed the necessary degree of knowledge. Factors

such as driving at extreme speed, driving against traffic and continuing to drive despite an obvious and immediate danger may be relevant in determining whether that threshold is met.

A person convicted of murder under **Section 302 of the PC** may be sentenced to death or imprisonment for between 30 and 40 years. If the death sentence is not imposed, the offender must also receive at least 12 strokes of whipping.

What have the Courts said?

In **Tham Kai Yau & Ors v Public Prosecutor [1977] 1 MLJ 174¹**, the Federal Court explained



that the distinction between culpable homicide and murder depends on the degree of probability of death. If death is merely a likely result, the offence may amount to culpable homicide. If death is the most probable result and the accused knew this, it may constitute murder.

This distinction was reaffirmed in **Mickelson Gerald Wayne v Public Prosecutor [2022] 6**

MLJ 118². The Federal Court emphasized that murder and culpable homicide require intention or knowledge and must be distinguished from conduct that is merely rash or negligent. For Section 300(d) of the PC, the accused's knowledge of the probability of death must approach practical certainty.

Recent Developments

1. Jad Faid Arhan case — MEX Highway, 2026³

On 30 April 2026, military officer Jad Faid Arhan was charged under Section 302 of the PC with murdering Muzahid Millad following a fatal collision on the MEX Highway. He allegedly drove against traffic while under the influence of alcohol.

He was also separately charged under Section 44(1A)(b) of the RTA 1987 for causing injuries to two other persons while driving under the influence. This is the clearest recent example of an alleged drink-driving incident resulting in a murder charge. As at July 2026, the case remains pending; documents were only recently furnished to the defence.

2. Saktygaanapathy Ravichandran case — Klang, 2026⁴

Saktygaanapathy Ravichandran was charged under Section 302 of the PC after allegedly driving intentionally against traffic at high speed while intoxicated and killing a motorcyclist.

The Attorney General expressly relied on Section 300(d) of the PC, stating that the alleged act was so imminently dangerous that it would, in all probability, cause death. This case is particularly useful for explaining the prosecution's legal basis, although the intoxication involved benzodiazepine and THC and was not limited to alcohol. These proceedings remain

¹ [1977] 1 MLJ 174.

² [2022] 6 MLJ 118.

³ <https://www.nst.com.my/news/nation/2026/07/1494144/documents-fatal-mex-crash-handed-over-army-captains-lawyer>.

⁴ <https://www.thestar.com.my/news/nation/2026/04/02/drunk-driver-in-fatal-crash-charged-with-murder>.

pending. Accordingly, the charges demonstrate that murder charges are legally possible, but they do not yet constitute judicial decisions confirming that the accused persons are guilty of murder.

Can intoxication be invoked as defence?

Under **Section 85 of the PC**, intoxication is generally not a defense. It is available only in limited circumstances, such as where the intoxication occurred without the accused's consent or rendered the accused legally insane. **Section 86 of the PC** further provides that intoxication may be considered when determining whether the accused formed the required intention. It does not automatically excuse a person who voluntarily drove after consuming alcohol or drugs.

Conclusion

A drunk driver can be charged with murder in Malaysia, but only in exceptional circumstances. Intoxication and the fact that death occurred are not, by themselves, sufficient. The prosecution must prove **beyond reasonable doubt that the driver knew the manner of driving was so imminently dangerous that death would, in all probability, result.** Otherwise, the more appropriate charge would generally fall under **Sections 41 or 44 of the RTA 1987.**

References

1. *Road Transport Act 1987*
2. *Penal Code*